

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

MELISSA BALLANCE,

Plaintiff

Index No.:

Date filed:

against

ARIEL EUSEBIO Detective NYPD Shield #2910,
Individually and in his Official Capacity; RASHIED
MCINTYRE, Detective NYPD Shield #5043 Individually
and in his Official Capacity; YERALDY BONIFACIO,
POM NYPD Shield 15500 Individually and in his Official
Capacity; FREDERIC ORTIZ, SGT NYPD Shield 03659
Individually and in his Official Capacity; ANTHONY
CASSASE, POM NYDP Shield 28721, Individually and in
his Official Capacity; RAUL MAISONET, CPT NYPD,
Individually and in his Official Capacity; JOHN KATEHIS,
POM NYPD, Shield 07177, Individually and in his Official
Capacity; RAFAEL MOOSCOSO, Detective NYPD Shield
1774, Individually and in his Official Capacity; JAMES
BURPOE, Detective NYPD Shield 02856, Individually and
in his Official Capacity; GARY PEREZ, Detective NYPD
Shield 5365, Individually and in his Official Capacity;
JUSTIN MCKNIGHT, POM NYPD Shield 22630, Individually
and in his Official Capacity; CARLOS RAMOS, POM NYPD
Shield 02287, Individually and in his Official Capacity; and,
CITY OF NEW YORK,

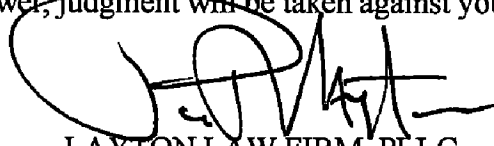
Defendants

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney, LAYTON LAW FIRM, PLLC within twenty days after service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 29, 2020



LAYTON LAW FIRM, PLLC
PAUL THOMAS LAYTON, ESQ.
Attorneys for Plaintiff
30 Vesey Street, Suite 1801
New York, New York 10007
(917) 923-4287
Laytonlaw10007@gmail.com

R I D E R

TO:

ARIEL EUSEBIO Detective NYPD Shield #2910
Address unknown

RASHIED MCINTYRE, Detective NYPD Shield #5043
Address unknown

YERALDY BONIFACIO.POM NYPD Shield 15500
Address unknown

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Address unknown

CITY OF NEW YORK
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
MELISSA BALLANCE,

Plaintiff,

**VERIFIED
COMPLAINT
TRIAL BY JURY
DEMANDED**

ARIEL EUSEBIO Detective NYPD Shield #2910,
Individually and in his Official Capacity; RASHIED
MCINTYRE, Detective NYPD Shield #5043 Individually
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Shield 02287, Individually and in his Official Capacity; and,
CITY OF NEW YORK,

Defendants.
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Plaintiff, MELISSA BALLANCE, by her attorneys, the LAYTON LAW

FIRM, PLLC complaining of the Defendants, respectfully alleges, upon information
and belief:

PRELIMINARY STATEMENT

1. This is a civil action against the CITY OF NEW YORK for *respondeat superior* liability for the assault and battery and for other wrongs suffered by Plaintiff MELISSA BALLANCE, under the common law of the State of New York; and, against the individually named defendants, for violations of Plaintiff's Constitutional rights as enforced through 42 U.S.C. §1983; in addition, the CITY OF NEW YORK is named as a defendant under the doctrine of **Monell v. Department of Soc. Svcs.**, 436 U.S. 658 (1978) for its' *de facto* unconstitutional policy of tolerating and encouraging excessive force its police department; this *de facto* includes a failure to train, supervise and discipline its police and acquiescence by the policymaker which caused the violations of federally protected rights under the First, Fourth, Fifth and Fourteenth Amendments of the United States Constitution following the plaintiff's arrest and detention.
2. Plaintiff seeks compensatory damages under New York State law and seeks compensatory damages against the individually named defendants and attorney fees under the federal claims; plaintiff also seeks compensatory damages and attorney fees for his Monell claim; and, plaintiff seeks punitive damages against the individually named defendants.

JURISDICTION and VENUE

3. Venue is proper as the acts or occurrences giving rise to these claims occurred in the County of New York in the City and State of New York.

NOTICE OF CLAIM

4. On December 23, 2019, and within 90 days of the occurrences herein complained of, the claimant/plaintiff served a Notice of Claim on the City of New York.
5. That on December 23, 2019, and within the time prescribed by law, the sworn Notice of Claim was served upon the CITY OF NEW YORK; the Notice of Claim stated, among other things, the time when and the place where injuries and damages were sustained, the manner in which the claims arose, together with Plaintiff's demands for adjustment thereof, and that, thereafter, the CITY OF NEW YORK refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
6. A hearing pursuant to General Municipal Law ("GML") §50-h was held on September 1, 2020.
7. This action is timely commenced as to all New York State and all federal claims.¹

PARTIES

8. At all times herein mentioned, Plaintiff, MELISSA BALLANCE, was resident of the City and State of New York.
9. At all times herein mentioned, Defendant, CITY OF NEW YORK, was, and still is, a municipal corporation organized under the laws of the State of New York.

¹ The time to file a Complaint has been tolled under Executive Orders of the Governor and are timely filed as to the New York State claims. The statute of limitations for the federal claims is three years from accrual and are therefore timely.

10. Upon information and belief the individually named Defendants resided and still reside in the State of New York.
11. The individual defendants are being sued herein in their individual capacities under federal law.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
13. The individual defendants' acts hereafter complained on were carried out intentionally, recklessly, with malice and in gross disregard of plaintiff's rights.
14. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
15. That at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, maintained The New York Police Department ("NYPD"), as an agency of the City government, having the duty to protect life and property, prevent crime, preserve the public peace and enforce all the laws, ordinances and provisions of the City and State of New York and the United States Constitution.

16. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to adequately and properly test and/or screen police officers, detectives and Captains of the NYPD.
17. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly hired applicants for the position of police officers, detectives and, captains of the NYPD.
18. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly trained applicants for the position of police officers, detectives and captains, of the NYPD.
19. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly supervised the activities of their police officers, detectives, and captains of the NYPD.
20. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly controlled the activities of their police officers, detectives and captains of the NYPD.
21. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly managed the activities of their police officers, detectives and captains of the NYPD.
22. The Defendant, CITY OF NEW YORK, by its agents, servants,

employees, agencies and/or departments carelessly, negligently and recklessly maintained the activities of their police officers, detectives and captains of the NYPD.

23. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly inspected the activities of their police officers, detectives and captains of the NYPD.
24. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers, detectives and captains the NYPD to act in an illegal manner.
25. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers, detectives and captains of the NYPD to act in an unprofessional manner.
26. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments caused, permitted and allowed their police officers, detectives and captains of the NYPD to act in a negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.
27. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to take proper action in suspending and/or reprimanding their police officers, detective and captains of the NYPD.
28. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments carelessly, negligently and recklessly

continued to retain in their employment police officers, detectives and captains of the NYPD clearly unfit to be police officers, detectives and captains of the NYPD.

29. That all times hereinafter mentioned, Defendant Police Officers Detectives and Captain were agents, servants and/or employees of the NYPD, an agency of Defendant, CITY OF NEW YORK.
30. That at all times hereinafter mentioned, Defendants Police Officers, Detectives and Captain were acting within the scope of their employment of the NYPD an agency of Defendant, CITY OF NEW YORK and were acting under the color of State Law.
31. That at all times hereinafter mentioned, Defendants Police Officers Detectives and Captain were acting within the scope of their employment with the permission and consent of the NYPD through its agency with Defendant, CITY OF NEW YORK.
32. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments failed to properly and adequately conduct investigations, obtain true facts and statements from witnesses and law enforcement officers.
33. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was careless, reckless and negligent in failing to discover the true facts which led to the Plaintiff's victimization by excessive force; assault; battery; and the violation of her civil rights under the 4th, 5th and 14th Amendments of the United States Constitution as enforced by

the provisions of 42 U.S.C. Section 1983 and parallel provisions of the New York State Constitution.

34. The Defendant, CITY OF NEW YORK, by its agents, servants, employees, agencies and/or departments, was further careless, reckless and negligent in the supervision of the activities of its agency the NYPD.

35. The Defendants, CITY OF NEW YORK by its agents, servants, employees, agencies and/or departments failed to take all necessary steps to prevent the plaintiffs victimization by excessive force, assault, battery and violation of federal and state civil rights.

FACTS COMMON TO ALL CLAIMS FOR RELIEF

36. On November 27, 2019, at approximately 6:45 A.M. plaintiff MELISSA BALLANCE was inside the premises located at 830 Amsterdam Avenue (Apt. 8F) in the County of New York in the City and State of New York.

37. At the aforesaid date and time, the individually named defendants were among NYPD police officers and/or detectives and/or a Captain who entered into the premises where plaintiff MELISSA BALANCE was lawfully present.

38. Individually named police officer, detective and/or captain defendants entered the premises with SWAT styled police equipment including tactical or ballistic shields.

39. After entering the premises Plaintiff MELISSA BALANCE was threatened with unwanted and non-consensual physical by one or more of the individually named defendants.

40. At the aforesaid date, time and place, plaintiff MELISSA BALANCE was subjected to being stuck and cut with the tactical or ballistic / shield used by one of the individually named police officer and/or detective and/or captain defendants.
41. At the aforesaid date, time and place plaintiff MELISSA BALANCE was pushed onto furniture and the floor of the premises by one or more of the individually named defendants.
42. At the aforesaid date, time and place plaintiff MELISSA BALANCE complained about pain she was suffering from being cut and pushed down onto the furniture and floor of the premises
43. Defendants failed to loosen or adjust the excessively tight handcuffs and left the handcuffs on for an excessive period of time.
44. Although fellow individual named defendants were present none took any action to prevent or terminate the violent assault and battery inflicted upon plaintiff MELISSA BALANCE.
45. None of the individually named defendants reported the circumstances regarding the use of force upon a defenseless unarmed woman under circumstances where the use of force as described was unreasonable and obviously unnecessary and outrageous.
46. As a result of the foregoing, Plaintiff MELISSA BALANCE was seriously injured.

FIRST CAUSE OF ACTION**Assault and Battery -State Law**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained hereinabove in paragraphs "1" through "46" inclusive with the same force and effect as though hereinafter set forth at length.
48. On January 20, 2019, while plaintiff MELISSA BALANCE was lawfully at the premises she was assaulted and battered by police officers employed by CITY OF NEW YORK without provocation.
49. Plaintiff MELISSA BALANCE was injured.
50. Plaintiff MELISSA BALANCE was seriously injured.
51. As a result of the foregoing, Plaintiff, MELISSA BALANCE demands judgment against defendant(s) CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION**Intentional and Negligent Infliction of Emotional Distress -State law**

52. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "51" as if more fully set forth herein.
53. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. As a result of the foregoing, plaintiff was deprived of her right to bodily integrity, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, humiliation and was otherwise damaged and injured

55. As a result of the foregoing, Plaintiff MELISSA BALANCE demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

THIRD CAUSE OF ACTION
Negligence -State law

56. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "55" as if more fully set forth herein.

57. The defendants, jointly and severally, negligently caused physical injury, emotional distress and damage to the plaintiff.

58. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated here statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

59. As a result of the foregoing, Plaintiff MELISSA BALANCE demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

Negligent Hiring, Screening, Retention, Supervision, and Training
State law

60. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "59" as if more fully set forth herein.
61. Defendant City negligently hired, screened, retained, supervised and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
62. As a result of the foregoing, plaintiff suffered serious bodily injury, pain and suffering, psychological and emotional injury and was otherwise damaged and injured.
63. As a result of the foregoing, Plaintiff MELISSA BALANCE demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

Individually Named Defendants and City of New York
(42 USC Section 1983)

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "63" as if more fully set forth herein.

65. The actions of defendants heretofore described constitute excessive force and a violation of the Plaintiffs constitutional rights under the Fourth Amendment of the United States Constitution which prohibits unreasonable searches and seizures and protects the Plaintiff from being subjected to excessive force; the individually named defendants violated Plaintiffs civil rights, including the Fourth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. Section 1983.
66. Defendants brutally assaulted and battered the Plaintiff in violation of her civil rights and more particularly in violation of the 4th Amendment to the United States Constitution.
67. Defendants actions were not objectively reasonable under the circumstances.
68. Defendants actions were undertaken under color of law and would not have existed but for said defendants using their official power.
69. The supervisors and policy making officers of defendant CITY OF NEW YORK and its Police Department, including Defendant Captain RAUL MAISONET as a matter of policy and custom have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.
70. The supervisors and policy making officers of defendant CITY,

OF NEW YORK and its Police Department, including the Individually named Police Department Captain RAUL MAISONET and supervisors whose names are not currently known, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

71. Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

72. Defendant, CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

73. Defendant, CITY OF NEW YORK hired and retained in its employ police officers with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

74. That the individual defendants acts were objectively unreasonable.

75. That the individual defendants motivations were in contravention of the U.S. Constitution and the Constitution of the State

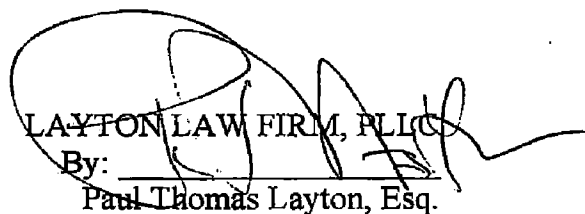
of New York

76. As a result of the foregoing the plaintiff MELISSA BALANCE has suffered serious and severe physical injuries and emotional distress.

77. As a result of the foregoing, Plaintiff MELISSA BALANCE demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

WHEREFORE, Plaintiff, MELISSA BALLANCE, seeks damages herein on the First, Second, Third and Fourth causes of action, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with costs and disbursements of this action; on the Fourth cause of action plaintiff MELISSA BALLANCE seeks damages in an amount to be determined by the trier of fact and costs and disbursements of the action as well as legal fees pursuant to 42 USC Section 1988; plaintiff MELISSA BALANCE seeks a jury trial as to each cause of action herein.

Dated: New York, NY
September 26, 2020


LAYTON LAW FIRM, PLLC
By: _____

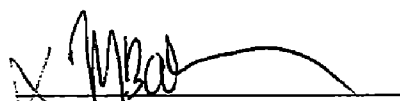
Paul Thomas Layton, Esq.
Attorneys for Plaintiff
30 Vesey Street, Suite 1801
New York, New York 10007
917-923-4287

Email: laytonlaw10007@gmail.com

VERIFICATION

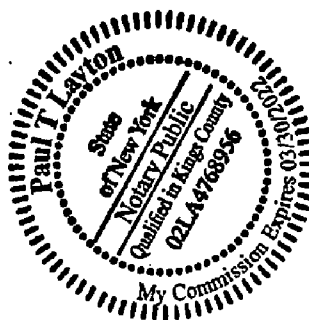
MELISSA BALLANCE, being duly sworn, deposes and says:

I am the Plaintiff in the above-entitled action. I have read the foregoing Verified Complaint and know the contents thereof. The same is true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matter, I believe them to be true.


MELISSA BALLANCE

On the 29 day of September, 2020, before me, the undersigned Melissa Ballance, personally appeared, personally known to me or proved to me on the basis of satisfactory evidence, to be the individual whose named is inscribed in the within instrument and acknowledged to me that she executed the same in her capacity, and that by her signature on the instrument the individual executed the instrument.


Notary Public



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
MELISSA BALLANCE

Plaintiff/Petitioner,

- against -

Index No.

ARIEL EUSEBIO, Detective NYPD Shield #

Defendant/Respondent.
-----X**NOTICE OF ELECTRONIC FILING
(Mandatory Commencement Case)
(Uniform Rule § 202.5-bb(a)(2)(v) and (vi))****You have received this Notice because:**

1) The Plaintiff/Petitioner, whose name is listed above, was required to file this case using the New York State Courts E-filing system ("NYSCEF"), and

2) You are a Defendant/Respondent (a party) in this case.

• If you are represented by an attorney:

Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg. 2).

• If you are not represented by an attorney:

You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The benefits of participating in e-filing include:

- serving and filing your documents electronically
- free access to view and print your e-filed documents
- limiting your number of trips to the courthouse
- paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov.

To find legal information to help you represent yourself visit www.nycourthelp.gov

**Information for Attorneys
(E-filing Commencement Documents is Mandatory)**

Attorneys representing a party must either consent or decline consent to electronic filing and service through NYSCEF for this case.

Attorneys registered with NYSCEF may record their consent electronically in the manner provided at the NYSCEF site. Attorneys not registered with NYSCEF but intending to participate in e-filing must first create a NYSCEF account and obtain a user ID and password prior to recording their consent by going to www.nycourts.gov/efile.

Attorneys declining to consent must file with the court and serve on all parties of record a declination of consent.

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

Dated: 9/29/2020

Paul Thomas Layton, Esq.

Name

Layton Law Firm, PLLC

Firm Name

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Address

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917-923-4287

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To: Corporation Counsel City of NY

100 Church Street

NY NY 10007

6/6/18

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MELISSA BALLANCE,Index No.
Date Purchased:

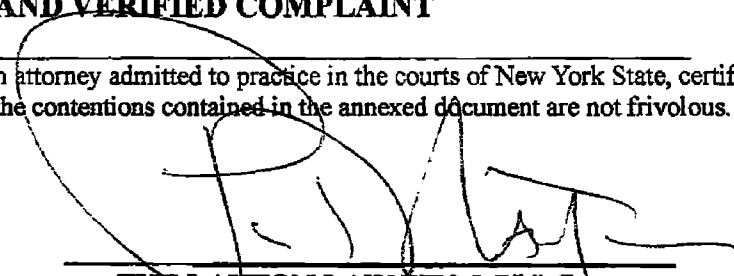
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Shield 02287, Individually and in his Official Capacity; and,
CITY OF NEW YORK,

Defendants
-----X**SUMMONS AND VERIFIED COMPLAINT**

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
September 23, 2020
THE LAYTON LAW FIRM, PLLC
by Paul Thomas Layton, Esq.

LAYTON LAW FIRM, PLLC
Attorney for Plaintiff(s)
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